

Court No. - 36

Case :- WRIT - C No. - 67538 of 2010

Petitioner :- Ram Das

Respondent :- State Of U.P. & Others

Petitioner Counsel :- Sanjay Kumar Srivastava

Respondent Counsel :- C.S.C.,Rajesh Tripathi

Hon'ble Ashok Bhushan,J.

Hon'ble Shyam Shankar Tiwari,J.

As prayed by Sri Rajesh Tripathi, learned counsel for the respondent, list on 3.12.2010 as fresh to obtain instructions.

Order Date :- 19.11.2010

Ram Murti

Court No. - 36

Case :- WRIT - C No. - 67538 of 2010

Petitioner :- Ram Das

Respondent :- State Of U.P. & Others

Petitioner Counsel :- Sanjay Kumar Srivastava

Respondent Counsel :- C.S.C.,Rajesh Tripathi

Hon'ble Ashok Bhushan,J.

Hon'ble Shyam Shankar Tiwari,J.

As prayed by Sri Rajesh Tripathi, list on 7.12.2010 as fresh.

Order Date :- 3.12.2010

Ram Murti

Court No. - 36

Case :- WRIT - C No. - 67538 of 2010

Petitioner :- Ram Das

Respondent :- State Of U.P. & Others

Petitioner Counsel :- Sanjay Kumar Srivastava

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Ashok Bhushan,J.

Hon'ble Shyam Shankar Tiwari,J.

Sri Rajesh Tripathi, learned counsel for the respondent seeks further time to obtain instructions.

As prayed, put up on Tuesday, i.e., 14.12.2010 as fresh.

Order Date :- 7.12.2010

Ram Murti

Court No. - 36

Case :- WRIT - C No. - 67538 of 2010

Petitioner :- Ram Das

Respondent :- State Of U.P. & Others

Petitioner Counsel :- Sanjay Kumar Srivastava

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Ashok Bhushan,J.

Hon'ble Shyam Shankar Tiwari,J.

As prayed put up on 20/12/2010, as fresh.

Till the next date, no coercive steps shall be taken against the petitioner in pursuance of the citation dated 10/8/2010.

Order Date :- 14.12.2010

SB

Court No. - 35

Case :- WRIT - C No. - 67538 of 2010

Petitioner :- Ram Das

Respondent :- State Of U.P. & Others

Petitioner Counsel :- Sanjay Kumar Srivastava

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Pankaj Mithal, J.

As prayed, put up as fresh before the appropriate Bench on 5th January, 2011.

Interim order already granted will continue to remain in operation till the next date fixed in the matter.

Order Date :- 20.12.2010

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Court No. - 36

Case :- WRIT - C No. - 67538 of 2010

Petitioner :- Ram Das

Respondent :- State Of U.P. & Others

Petitioner Counsel :- Sanjay Kumar Srivastava

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Ashok Bhushan,J.

Hon'ble Shyam Shankar Tiwari,J.

Heard learned counsel for the petitioner and Shri Rajesh Tripathi for the respondents no. 2 to 4.

Petitioner's case in the writ petition is that the electric connection of the tubewell was in the name of petitioner's father and some other persons who have already died. Due to non-payment of dues, recovery certificate was sent by the Executive Engineer to the Collector and recovery proceedings have been issued by issuing citation dated 10/8/2010 for recovering an amount of Rs.1,45,232/-. Petitioner's grievance is that the electric connection was in the name of the petitioner's father, but it has not yet been transferred in his name. He however does not deny that the electric connection is being used by the petitioner.

Learned counsel for the respondents submits that the proper course open for the petitioner is to make an appropriate application for transfer of the electric connection in his name under para 4.44 of the U.P. Electricity Supply Code 2005.

We do not find any good ground for quashing the recovery proceedings. It is, however open for the petitioner to make an appropriate application for transfer of the electric connection in his name under para 4.44 of the U.P. Electricity Supply Code 2005.

With the aforesaid observation writ petition stands disposed of.

Order Date :- 5.1.2011

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